

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
MAMADOU DIARRA,

Petitioner,

- against -

AFFIRMATION IN
SUPPORTTHE CITY OF NEW YORK, SERGEANT JOHN
STANCHIC of BX TC (Shield No. 5182) and POLICE
OFFICER CHRISTIN A. MONCION of the 52nd
Precinct (Shield No. 11670),

Respondents.

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JEFFREY W. RIZZO, an attorney duly authorized to practice law before the Courts of this State, hereby affirms the truth of the following under the penalties of perjury pursuant to CPLR 2106:

1. I am the attorney for Petitioner herein and bring this application for an Order to Show Cause requesting that this Court grant Petitioner leave to file his Notice of Claim *nunc pro tunc* to a date within 90 days of March 9, 2017, upon Respondents, pursuant to General Municipal Law §50-e(5). Attached hereto is an **Affidavit of Merit dated May 9, 2018**, as **Exhibit A**. A copy of the **proposed Notice of Claim**, which was already served upon the Defendant, CITY OF NEW YORK (hereinafter CITY) on May 10, 2018, is attached hereto as **Exhibit B**. A CPL § 160.50 Unsealing Authorization is attached hereto as **Exhibit C**.

2. Petitioner's claims are for state law claims for false arrest, false imprisonment, malicious prosecution, assault and battery, as well as deprivation of Petitioner's rights as secured by the Constitution of the United States, pursuant to 42

USC §1983. The Notice of Claim was timely as to Petitioner's claim for malicious prosecution.

3. Petitioner's claims arise from the unlawful arrest of Petitioner MAMADOU DIARRA (hereinafter DIARRA) in the vicinity of Jerome Avenue and West 192nd Street, Bronx, New York. Respondents' unlawful incarceration of Petitioner for approximately twenty-four (24) hours after his arrest, as well as the subsequent prosecution (under Docket No. 2017BX010323) of Petitioner for various criminal charges, despite the existence of overwhelming and clear exculpatory evidence demonstrating Petitioner's innocence of the charges against him, in violation of the laws of the State of New York and the Constitution of the United States.

4. The charges against Petitioner under Docket No. 2017BX010323 were adjourned in contemplation of dismissal on or about April 12, 2018.

5. Petitioner's false arrest and false imprisonment claims accrued on February 15, 2017, after he was released from custody. See Nunez v. City of New York, 307 AD2d 218 (1st Dept. 2003).

6. As the court indicated in Perez v. Empire Bus Co., 13 Misc.3d 535 (Supreme Ct., Bronx County, 2006), "[a] notice of claim is a statutory device that creates a condition precedent to the right to bring an action. This statutory precondition serves 'to enable municipalities to pass upon the merits of a claim before the initiation of litigation and thereby forestall unnecessary lawsuits.'" quoting Alford v. City of New York, 115 AD2d 420 (1st Dept. 1985) (internal citations omitted). "The late service of a notice of claim without leave of the court is a nullity." Perez, supra. Typically, the notice of claim must be served within ninety (90) days "after the claim arises." Gen.

Municipal Law § 50-e (1)(a). However, “upon application, the court, in its discretion, may extend the time to serve a notice of claim....The extension shall not exceed” the statutory period for commencing an action against a public corporation, or one year and ninety days from accrual of the claim. Gen. Municipal Law §50-e(5); CPLR 215.

7. The court has discretion whether to grant an application for leave to serve a late notice of claim. Dubowy v. City of New York, 305 AD2d 320 (1st Dept. 2003). In determining whether to grant such leave, General Municipal Law § 50-e(5) should be “liberally construed” as the notice of claim requirement is not intended to “operate as a device to defeat the rights of persons with legitimate claims.” Nunez, 307 AD2d 218 (1st Dept. 2003). “The key factors which the court must consider in determining if leave should be granted are whether the movant demonstrated a reasonable excuse for the failure to serve the notice of claim within the statutory time frame, whether the municipality acquired actual notice of the essential facts of the claim within 90 days after the claim arose or a reasonable time thereafter, and whether the delay would substantially prejudice the municipality in its defense.” Semyonova v. New York City Housing Authority, 15 A.D.3d 181 (1st Dept. 2005) citing Dubowy, 305 A.D.2d at 321. In determining whether to grant an application for leave to serve a late notice of claim, the court does not pass judgment of the merits of the petitioner’s claim. Berete v. New York City Health and Hosp. Corp., 48 AD3d 327 (1st Dept. 2008). Some courts, however, will consider such merits only where the petitioner’s claim is patently without merit. Allende v. City of New York, 69 AD3d 931 (2nd Dept. 2010).

8. The presence or absence of any one factor is not determinative, but the Court of Appeals held that absent any record to support a claim of substantial prejudice “it is an abuse of discretion as a matter of law when, as here, a court determines, that a respondent will be substantially prejudiced in its defense by a late notice of claim.” Matter of Newcomb v. Middle County Cent. Sch. Dist., 28 NY3D 455 (2016) (emphasis added), see also, Semyonova, 15 A.D.32 at 182; Gerzel v. City of New York, 117 A.D.2d 549, 551 (1st Dept., 1986). Even if this court determines Plaintiff does not have a reasonable excuse for failing to file a notice of claim within the statutory 90 days, such error does not preclude the court from granting the motion, “especially where, as here, the [municipality] has had the opportunity to investigate petitioner’s claims...and where, as here, the [municipality] cannot show that it was prejudiced by the delay.” Ansong v. City of New York, 764 N.Y.S.2d 182, 183 (1st Dept., 2003) (internal citations omitted). A failure to present a “reasonable explanation is without significance given the existence of actual notice and the city’s failure to show substantial prejudice by the late notice.” Gerzel v. City of New York, 499 N.Y.S.2d 60 (1st Dept., 1986).

9. The identity of the actors accused of the misconduct bears on the level of notice the municipality received. In Ansong, it was reversible error for the court to deny a petitioner’s application to serve late notice of claim *nunc pro tunc* where the alleged injuries were caused by police officers acting in their capacities as such, the petitioner served a notice of claim ten months after the dismissal of charges against him, and the petitioner failed to support the reasonableness of his excuse of medical incapacitation for failure to serve timely notice. Id. The court noted that the municipality’s “claimed lack of actual knowledge is completely refuted by the fact that the officers who allegedly

assaulted petitioner would, as respondent's employees, have had immediate knowledge of the events giving rise to this dispute." Id.

10. Where the facts of the alleged malicious prosecution are contained in police reports and court records, claims of prejudice cannot obtain. The Ansong court held that the municipality's "claim of prejudice is...meritless since police and Criminal Court records pertaining to petitioner's arrest, as well as the favorable disposition of charges against him, are presumably still in existence." Id. Similarly, the court in Diallo v. City of New York, 638 N.Y.S.2d 58, 59 (1st Dept., 1996), determined that a notice of claim alleging "malicious prosecution" filed prior to dismissal of charges against the petitioner provided actual knowledge to the municipality since "[a]ny investigation of the incident" giving rise to the claim "would necessarily have revealed the prosecution and final disposition of the criminal charges...[and] actual knowledge of the allegedly malicious prosecution may be imputed to respondent through the police officers in its employ" who were accused of misconduct in the initial claim. Id.

11. Courts have consistently held that service of a late notice of claim alone is not to be equated with prejudice when, under all of the circumstances, justice and fairness compel a discretionary finding of little or no prejudice. See Licari v. NYC Housing Authority, 181 A.D.2d 558 (1st Dept. 1992); Gerzel, 117 A.D.2d 549 (1st Dept. 1986); Rivera v. New York City Housing Authority, 169 A.D.2d 414 (1st Dept. 1991).

12. In Matter of Newcomb, the Court of Appeals further held that petitioner must either present evidence **or make a plausible argument** that there is no substantial prejudice, to the respondent, by the late filing of a notice of claim. Id. at 466 (emphasis

added). Courts have consistently held that service of a late notice of claim alone is not to be equated with prejudice when, under all of the circumstances, justice and fairness compel a discretionary finding of little or no prejudice. See Licari v. NYC Housing Authority, 181 A.D.2d 558 (1st Dept. 1992); Gerzel, 117 A.D.2d 549, 550-52; Rivera v. New York City Housing Authority, 169 A.D.2d 414, 416 (1st Dept.1991).

13. It is respectfully submitted that the Court should grant leave because Respondents have notice of the essential facts underlying the claim and will not be prejudiced by a time extension. Semyonova v. New York City Housing Authority 15 A.D.3d 181 (1st Dept. 2005)

14. Respondents received actual notice of the essential facts giving rise to the causes of action explained in the notice within 90 days after the claim arose or “within a reasonable time thereafter,” as required by General Municipal Law § 50-e (5).

15. In this action, Respondents acquired actual knowledge of the facts giving rise to this action within the 90 day period because New York City Police Officers participated in the acts giving rise to the claim, those officers filed reports about their arrest and the District Attorney of Bronx County filed a Criminal Court complaint against petitioner. See Ragland, 201 AD2d 7 (2nd Dept. 1994).

16. The Ragland court drew a distinction between cases where police officers had knowledge of the key facts of a claim and cases where the police officers’ conduct itself was the subject of the claim. Id.

17. The Appellate Division, First Department has several times ruled that when police officers have knowledge of the facts underlying a claim, that knowledge cannot be imputed to the municipal corporation itself. Id. (citing Evans v. New York

City Hous. Auth., 176 A.D.2d 221 (1st Dept. 1991) and Chattergoon v. New York City Hous. Auth., 161 A.D.2d 141, aff'd 78 N.Y.2d 958 (1991). However, the Ragland court distinguished those cases because in Ragland, like in the instant case, the acts of the police gave rise to the claim, a "factor of considerable significance." Ragland, 201 A.D.2d 7 at 11 (citations omitted).

18. As the Appellate Division, First Department has explained, courts have "repeatedly sustained" as reasonable delays longer than one month and one week or 10 months. Heiman v. City of New York, 85 A.D.2d 25 (citing Beatty v. County of Saratoga, 74 A.D.2d 662 (4 months); Matter of Wemett v. County of Onondaga, 64 A.D.2d 1025 (7 months); Bureau v. Newcomb Cent. School Dist., 74 AD2d 133 (9 months); Palazzo v City of New York, 444 F. Supp 1089 (12 months)).

19. Furthermore, Respondents will not be prejudiced by granting Petitioner an extension to file his notice of claim because the City had notice of the facts giving rise to the claim within the 90 day time period or a reasonable time thereafter. The purpose of the time limit for filing a notice of claim is to permit the public corporation to investigate the facts and circumstances giving rise to the claim, and if the corporation can conduct such an investigation, it will not normally be prejudiced. Ragland, 201 A.D.2d 7 at 11.

20. In the instant case, just as in Ragland, *supra*, the public corporation's police officers' conduct gave rise to the cause of action asserted in the notice of claim, and the officers filed reports about their actions.

21. In Weiss v. City of New York, 655 N.Y.S.2d 34, 36 (1st Dept. 1997), the court held that where the defendant "in its opposition to petitioners' motion, did not

even assert that there was any prejudice, much less specify how its ability to defend or investigate had been impaired," the absence of a reasonable excuse should not have been fatal to petitioner's motion to file a late notice of claim.

22. Based upon the facts explained herein and the applicable law, Petitioner's request for leave to file his Notice of Claim *nunc pro tunc* to any date within 90 days of March 9, 2017 should be granted. Petitioner's excuse for filing a late notice of claim is reasonable. In the instant case, Respondents acquired actual notice of the essential facts of this claim within 90 days or within a reasonable time thereafter, as their own agents' actions are the subject matter of this claim and its own agents filed reports describing their arrest. Respondents will not suffer any prejudice if this Court grants Petitioner a time extension, as Respondents were able to conduct a timely investigation and are still able to investigate Petitioner's claims.

23. Not only do two or three of the three factors courts consider in deciding whether to grant a late notice of claim militate in favor of Petitioner, but granting Petitioner leave would be consistent with a liberal construction of General Municipal Law § 50-e (5). See Dubowy, 306 A.D.2d 321 (General Municipal Law § 50-e (5) must be "liberally construed."). § 50-e (5) was not enacted to defeat legitimate claims like the instant one. In the instant case, unless the Court grants Petitioner leave to file his late notice of claim, his claim will be defeated. See Id. (§ 50-e (5) is not intended to "operate as a device to defeat the rights of persons with legitimate claims.")

24. No prior application for the relief sought herein has been made.

WHEREFORE, it is respectfully requested that this Court grant Petitioner leave to file his Notice of Claim *nunc pro tunc* to any date within 90 days of March 9, 2017, along with such other and further relief as to this Court may deem just, proper and equitable.

Date: May 14, 2018
Bronx, New York

Respectfully submitted,



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